

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
LEWIS BRISTOLE, JR.,

Plaintiff,

-against-

CITY OF NEW YORK AND POLICE OFFICER
MATTHEW BORELLA, SHIELD NUMBER 15432,Defendants.
-----XIndex No.:
Date Purchased:Plaintiff designates New York
County as the place of trial.Basis of venue is place
of occurrence.**SUMMONS**

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
September 21, 2018
TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
By: Tracie A. Sundack, Esq.
Attorneys for Plaintiff
LEWIS BRISTOLE, JR.
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendant's address:

CITY OF NEW YORK
100 Church Street
New York, New York 10007POLICE OFFICER MATTHEW BORELLA,
SHIELD NUMBER 15432,
Highway Unit No. 1
Bronx River Parkway
Bronx, New York 10462

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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LEWIS BRISTOLE, JR.,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK AND POLICE OFFICER
MATTHEW BORELLA, SHIELD NUMBER 15432,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff LEWIS BRISTOLE, JR. by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK and POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, respectfully alleges as follows:

1. That at all times hereinafter mentioned Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.

2. That at all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents servants and employees operated, maintained and controlled The New York City Police Department, including all the police officers thereof.

3. That at all times hereinafter mentioned Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, was employed by Defendant CITY OF NEW YORK as a police officer.

4. That at all times hereinafter mentioned Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, acted within the scope of his employment for Defendant CITY OF NEW YORK.

5. That at all times hereinafter mentioned Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, was assigned to Highway Patrol Unit No. 1 (Bronx River Parkway, Bronx, New York 10462).

6. That at all times hereinafter mentioned Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

7. On December 31, 2015, at approximately 11:30 p.m., Plaintiff LEWIS BRISTOLE, JR. was the driver of a motor vehicle traveling on 12th Avenue approaching its intersection with 46th Street in the County, City, and State of New York when he was ordered to pull over by a New York City Police Department vehicle operated and/or manned by Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432.

8. At the aforementioned date and time, Plaintiff LEWIS BRISTOLE, JR. complied and brought the motor vehicle to a stop at, or near, Intrepid Plaza and 12th Avenue in the County, City, and State of New York. Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, approached the vehicle and requested Plaintiff LEWIS BRISTOLE, JR.'s Driver's License. Plaintiff LEWIS BRISTOLE, JR. complied. Shortly thereafter, Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, ordered Plaintiff LEWIS BRISTOLE, JR. to exit his motor vehicle. Plaintiff LEWIS BRISTOLE, JR. again complied.

9. At the aforementioned time and place, Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, handcuffed Plaintiff LEWIS BRISTOLE, JR. and placed him under arrest for Operating a Motor Vehicle While Intoxicated (VTL § 1192(3)) and Operating a Motor Vehicle While Impaired by Alcohol (VTL § 1192(1)) despite Defendant's knowledge that he lacked reasonable grounds or probable cause to do so.

10. That on December 31, 2015, at approximately 11:30 p.m., Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, forcibly, wrongfully and unlawfully arrested Plaintiff LEWIS BRISTOLE, JR.

11. Plaintiff LEWIS BRISTOLE, JR. was then transported to a nearby New York City Police Department Precinct where his arrest was processed. Plaintiff LEWIS BRISTOLE, JR.

was then transported to Manhattan Central Booking (100 Centre Street, New York, New York 10013) for arraignment.

12. That on January 1, 2016, at approximately 3:00 P.M., following arraignment, Plaintiff LEWIS BRISTOLE, JR. was released from custody on his own recognizance

13. That on February 28, 2017, following a bench trial before the Honorable A. Scherzer, Plaintiff LEWIS BRISTOLE, JR. was acquitted of all criminal charges (Docket Number 2016NY001016 - Criminal Court of the City of New York - New York County).

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

14. Plaintiff LEWIS BRISTOLE, JR. repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

15. That on the aforementioned date and place, Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, placed Plaintiff LEWIS BRISTOLE, JR. under arrest despite Defendant's knowledge that he lacked probable cause to do so.

16. That Plaintiff LEWIS BRISTOLE, JR. had not committed any offense and Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

17. That Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, was aware that probable cause did not exist for the arrest and detention of Plaintiff LEWIS BRISTOLE, JR. and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendant acted with malicious intent to arrest, oppress, and injure Plaintiff LEWIS BRISTOLE, JR. and such actions were committed in bad faith.

18. That, in all of the wrongful acts above alleged, Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff LEWIS BRISTOLE, JR. and such actions were committed in bad faith.

19. As a direct and proximate result of the above-described unlawful and malicious acts of Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, all committed under color of his authority as a police officer, and while acting in that capacity, Plaintiff LEWIS BRISTOLE, JR. was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

20. As a further result of the above-described acts, Plaintiff LEWIS BRISTOLE, JR. was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

21. Plaintiff LEWIS BRISTOLE, JR. repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

22. That Plaintiff LEWIS BRISTOLE, JR. was falsely imprisoned from approximately 11:30 PM on December 31, 2015, to approximately 3:00 PM. on January 1, 2016, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, who procured and/or effected said false imprisonment knowing his actions to be wrongful and malicious and without any basis.

23. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, intended to confine Plaintiff LEWIS BRISTOLE, JR. and Plaintiff LEWIS BRISTOLE, JR. was conscious of the confinement, and Plaintiff LEWIS BRISTOLE, JR. did not consent to the confinement.

24. That Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, words, actions, and the charges laid by him were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff LEWIS BRISTOLE, JR. and damaging Plaintiff LEWIS BRISTOLE, JR. in his reputation and depriving him of his liberty.

25. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, all committed under color of his authority as a police officer for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff LEWIS BRISTOLE, JR. suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

26. Plaintiff LEWIS BRISTOLE, JR. repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

27. That Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, misrepresented and falsified evidence before the District Attorney.

28. That Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, did not make a complete and full statement of facts to the District Attorney.

29. That Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, withheld exculpatory evidence from the District Attorney.

30. That Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, was directly and actively involved in the initiation of criminal proceedings against Plaintiff LEWIS BRISTOLE, JR.

31. That Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, lacked probable cause to initiate criminal proceedings against Plaintiff LEWIS BRISTOLE, JR.

32. That Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, acted with malice in initiating criminal proceedings against Plaintiff LEWIS BRISTOLE, JR.

33. That Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, was directly and actively involved in the continuation of criminal proceedings against Plaintiff LEWIS BRISTOLE, JR.

34. That Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, lacked probable cause to continue criminal proceedings against Plaintiff LEWIS BRISTOLE, JR.

35. That Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, acted with malice in continuing criminal proceedings Plaintiff LEWIS BRISTOLE, JR.

36. That Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, misrepresented and falsified evidence throughout all phases of the criminal proceeding.

37. That, notwithstanding the perjurious and fraudulent conduct of Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, the criminal proceedings were terminated in Plaintiff LEWIS BRISTOLE, JR.'s favor.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
MUNICIPAL LIABILITY**

38. Plaintiff LEWIS BRISTOLE, JR. repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

39. Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

40. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

41. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff LEWIS BRISTOLE, JR.

42. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff LEWIS BRISTOLE, JR. as alleged herein.

43. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff LEWIS BRISTOLE, JR. as alleged herein.

44. Defendant POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, collectively and individually, while acting under the color of state law, were directly and actively involved in violating Plaintiff LEWIS BRISTOLE, JR.'s constitutional rights.

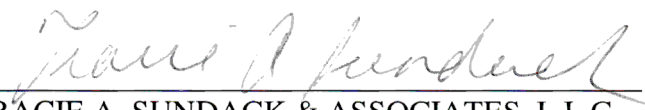
45. All of the foregoing acts by defendants deprived Plaintiff LEWIS BRISTOLE, JR. of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. Not to have cruel and unusual punishment imposed upon him;
- E. To receive equal protection under the law.

46. As a result of the foregoing, Plaintiff LEWIS BRISTOLE, JR. is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00)

WHEREFORE Plaintiff LEWIS BRISTOLE, JR. demands judgment against Defendants CITY OF NEW YORK and POLICE OFFICER MATTHEW BORELLA, SHIELD NUMBER 15432, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
September 21, 2018



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
By: Tracie A. Sundack, Esq.
Attorneys for Plaintiff
LEWIS BRISTOLE, JR.
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } SS.:

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains his office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
September 21, 2018



TRACIE A. SUNDACK